

1. EDC DCSS v. BENJAMIN DAVID WOOD (OTHER PARENT: SYDNEY GANN) 23FL1216

On October 9, 2025, Respondent filed a Request for Order (RFO) seeking child custody and property control orders as well as a change of venue. This matter originally came before the court for hearing on January 15, 2026, at which time the court granted a continuance to allow time for proper service of the RFO.

There is no Proof of Service for the RFO or the Notice of Tentative Ruling. Nevertheless, Other Parent filed a Responsive Declaration to Request for Order on February 26th, thereby waiving any potential defect in service.

DCSS filed its Responsive Declaration to Request for Order however there is no Proof of Service for this document therefore the court cannot consider it.

Respondent is requesting a change of venue to Sacramento County. He further requests custody and visitation orders and sole use, and possession of the vehicle which is in the possession of Other Parent.

Other Parent proposes her own custody, visitation and holiday schedule. She opposes the request regarding the vehicle and asks that Respondent be ordered to continue making the payments on the vehicle.

The court may, upon a properly noticed motion, transfer any matter where the court designated in the complaint is not the proper court. Cal. Civ. Pro. § 397(a). In matters of child custody, venue is typically tied to the child's residence or "home state" as defined under the UCCJEA. *K.R.L. Partnership v. Sup. Ct.*, 120 Cal. App. 4th 490 (2004). However, California Family Code Section 17400 provides that venue for an action or proceeding involving a local child support agency "shall be in the superior court in the county that is currently expending public assistance." Cal. Fam. Code Section 17400(n)(1)(A). The burden is on the moving party to establish grounds for a change of venue. *Fontaine v. Sup. Ct.*, 175 Cal. App. 4th 830 (2009).

Here, Respondent argues that Sacramento County is proper venue because that is where the child resided full-time until August of 2023. Since that time, Other Parent moved to Placerville and the child now resides in Placerville 50% of the time. Given that the child's place of residence is split evenly between Placerville and Sacramento; and given that the El Dorado County Department of Child Support Services is a party to the action, the court finds that El Dorado County remains the proper venue. The request for a change of venue is denied.

Turning to the issue of custody, it has been more than six months since the parties attended Child Custody Recommending Counseling (CCRC). As such, the parties are

referred to CCRC with an appointment on Thursday, April 16th at 9:00 am. A review hearing is set for Thursday, June 11th at 8:30 am in Department 5. The court reserves jurisdiction on the issue of the vehicle until the time of the review hearing. Parties are ordered to file Supplemental Declarations no later than 10 days prior to the review hearing.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: THE REQUEST TO CHANGE VENUE TO SACRAMENTO COUNTY IS DENIED. TURNING TO THE ISSUE OF CUSTODY, THE PARTIES ARE REFERRED TO CCRC WITH AN APPOINTMENT ON THURSDAY, APRIL 16TH AT 9:00 AM. A REVIEW HEARING IS SET FOR THURSDAY, JUNE 11TH AT 8:30 AM IN DEPARTMENT 5. THE COURT RESERVES JURISDICTION ON THE ISSUE OF THE VEHICLE UNTIL THE TIME OF THE REVIEW HEARING. PARTIES ARE ORDERED TO FILE SUPPLEMENTAL DECLARATIONS NO LATER THAN 10 DAYS PRIOR TO THE REVIEW HEARING.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.